

representations that residents of the Facility would be provided with a standard of care consistent with all statutory and regulatory requirements.

The complaint also alleges that “[i]ntegreted into the scheme set forth by the DEFENDANTS through their Governing Body is the objective to limit costs so as to maximize profit for DEFENDANTS’ individual directors, officers, and managers at the expense of the health and safety of residents like CHIEM SAEPHAN. Through budgetary constraints, the DEFENDANTS systematically fail to have the resources or the staff on hand to manage the care of residents like CHIEM SAEPHAN.” (*Id.* at ¶ 10.) The complaint further alleges that the FACILITY and MANAGEMENT DEFENDANTS acted “in concert with one another in furtherance of their common design and agreement to accomplish a particular result, namely maximizing profits for DEFENDANTS’ individual directors, officers, and managers from the operation of the FACILITY by underfunding and understaffing the FACILITY. Moreover, the DEFENDANTS aided and abetted each other in accomplishing the acts and omissions alleged herein.” (*Id.* at ¶ 12.) Defendants are also alleged to have “multiple common officers, directors, and managing agents.” (*Id.* at ¶ 19.)

On 8/30/2024, Plaintiff filed a motion for class certification. (ROA #57.) The motion was withdrawn on 3/25/2025, after the parties reached a settlement at mediation. (ROA #142.)

On 4/3/2025, Plaintiff filed a motion for preliminary approval of the class action settlement. (ROA #147.) In support, Plaintiff submitted the Settlement Agreement (ROA #147, Exh. 1) and the Addendum to Settlement Agreement (ROA #169, Exh. 2). On 6/26/2025, at the 2nd hearing on the matter, the Court granted the motion. (ROA #184.) On 7/11/2025, the Court signed and entered the order granting preliminary approval. (ROA #189.)

In the meantime, on 6/26/2026, the Court entered a stipulated order to consolidate the instant action with *Miller v. ASMB, LLC*, OSCS Case No. 30-2024-01431680-CU-NP-CJC for purposes of settlement. (ROA #173.) However, this *Miller* complaint was filed on 12/7/2025 by Plaintiff Patricia Miller, by and through her successor in interest, Natalie Gianne. (See ROA #2 in Case No. 2024-01431680.) It is *not* a class action complaint; rather, it alleges 2 causes of action for (1) Elder Abuse (Pursuant to the Elder Adult and Dependent Adult Civil Protection Act—Welfare & Institutions Code §§ 15600, et seq.) and (2) Negligence. Although the caption of the stipulated order lists a different *Miller* case that is a class action—i.e., *Miller v. ASMB, LLC*, OCSC Case No. 30-2024-01439749—the text of the order consolidates the instant action with the wrong *Miller* (individual) case.

On 11/5/2025, Plaintiffs filed the instant (1) Motion for Final Approval of Class Action Settlement and (2) Motion for Award of Attorneys’ Fees, Costs, and Service Awards (collectively, “Motion”).

After the first hearing on the Motion on 12/4/2025, the Court continued the Motion so that Class Counsel could address various issues identified by the Court. (ROA #204; see also ROA #206 [addressing administrator’s late-filed supplemental declaration].) The Court also vacated the 6/26/2025